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PIRKMÜHLE
21 May 2026

Information within the meaning of Art. 16 of the PPWR for the requirements of Art. 5 of the PPWR.

With the publication of the PPWR (2025/40/EC) new requirements on packaging have been set out with additional specific requirements for food packaging.

A clear distinction has to be made between the duties and obligations of a packaging manufacturer (brand owner) compared with the duties of a supplier of packaging material. The obligations regarding an EU Declaration of Conformity according to Article 39 of the PPWR are different from the obligations set out for a Declaration of Compliance for food contact materials according to applicable food contact legislation (e.g. 1935/2004/EC) that addresses food contact materials.

An EU Declaration of Conformity according to Article 39 of the PPWR can only be issued for food packaging in its final shape and cannot be issued for food contact materials in the format of sheets, rolls or other intermediate stages. This is also valid for any Declarations regarding Article 5 of the PPWR.

Constantia Flexibles as a supplier of packaging material is required under Article 16 of the PPWR to support our customers, the packaging manufacturer, in setting up the technical documentation that is required to enable our customers to issue EU Declarations of Conformity.

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Heavy Metals

In order to fulfill the requirements of Article 3 of the EU Framework Regulation 1935/2004/EC we regard the intentional use of lead, cadmium, mercury, and hexavalent chromium in food contact materials as prohibited. Analytical spot checks showed that even if the presence cannot be excluded as NIAS – e.g. in aluminium alloys – the sum value does not exceed 100ppm in the final food packaging materials.

Therefore, based on the information received from suppliers and the general safety requirements under the EU Food Contact Regulations, we can confirm that the sum concentration of the four heavy metals in the supplied food packaging materials does not exceed 100 ppm.

PFAS

Our approach to enabling our customers to comply with the requirements set out for PFAS in food packaging is “Compliance by Design” by preventing the intentional use of PFAS. We rely on intermediate supplier information, supported by spot checks using Total Fluorine (TF) or Total Organic Fluoride (TOF) analysis to verify the 50ppm threshold limit. As for the existing analytical challenge to verify all 3 threshold limits, stakeholders and the EU Member states have agreed on a PFAS testing strategy that foresees no further testing if the TF limit <50ppm is kept. Packaging associations like Flexibles Packaging Europe (FPE) and Industrievereinigung Kunststoffverpackungen (IK) are supporting this approach. A [Guidance document on Packaging and Packaging Waste Regulation \(PPWR\)](#) that was published by DG Environment on 30.03.2026 also supports this approach for the enforcement of the PFAS restrictions.

CFLEX follows a risk based and proportionate approach, in line with industry guidance.

Based on supplier documentation and the results of spot checks using TF and TOF analysis, we confirm that the requirements for PFAS as set out in Article 5.5 of the PPWR are met for the supplied packaging materials.

Documentation and Test Reports

For heavy metals, compliance under Directive 94/62/EC has historically been demonstrated through appropriate supply chain documentation, which has proven effective for decades. Requiring suppliers to provide test reports for each material would impose a significant and unnecessary burden, given that existing practices ensure compliance.

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By August 2026, intentional PFAS use in food packaging will largely be eliminated. Industry data already show a strong correlation between the absence of intentionally used PFAS and TF test results below 50 ppm. Therefore, extensive testing of all supplied packaging materials before delivery is disproportionate and impractical.

Please note that supporting documentation provided by our suppliers and test reports for verifying PFAS limits will not be shared for every delivered material specification. However, PFAS-testing (TF/TOF) will be subject to a risk-based monitoring approach. Upon request, supply chain documentation and full test reports can be made available directly to the competent authorities.

This statement is valid for all packaging materials produced at Constantia Pirk.

Constantia Pirk GmbH & Co. KG

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After having stopped the delivery for more than 12 months this declaration loses its validity for new deliveries of the product under consideration.

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